Employment Tribunal — Claim form (ET1)

DRAFT prepared by Birchall Stone LLP for the claimant — not yet presented

1 Claimant's details	
Title / name	Mr David John Garrety
Date of birth	11 March 1967 (age 58)
Address	14 Selwyn Crescent, Edgbaston, Birmingham B15 3TR
Representative	Oliver Jennings, Birchall Stone LLP (ref OJ/EMP/2291)
2 Respondent's details	
Name	Pennington Industries Limited
Address	Pennington House, Hagley Road, Birmingham B16 8QG
3 Employment details	
Job title	Group HR & Operations Director
Employment began	5 January 2012
Employment ended	9 May 2025 (effective date of termination)
Gross weekly pay	£2,846 (basic); package c. £190,000 p.a. incl. benefits
ACAS early conciliation no.	R123456/25/71

4 Type of claim

• Automatic unfair dismissal — protected disclosure (s.103A Employment Rights Act 1996)
• Detriment on the ground of having made protected disclosures (s.47B ERA 1996)
• Direct age discrimination (s.13 Equality Act 2010)
• Ordinary unfair dismissal (s.98 ERA 1996), in the alternative
• A redundancy payment (claimed and admitted)

8 Details of claim

8.1 The claimant was employed by the respondent from 5 January 2012, latterly as Group HR & Operations Director under a service agreement dated 3 September 2018, on a notice period of 12 months.

8.2 On 18 November 2024 and 2 December 2024 the claimant made disclosures, in writing, that pressure-testing records at the respondent's Dudley plant had been signed off without testing being completed and concealed from a customer, and that the draft year-end accounts did not reflect known warranty exposures. The claimant relies on these as qualifying protected disclosures under s.43B ERA 1996.

8.3 Following those disclosures the claimant was excluded from senior leadership meetings he had previously chaired and his operational responsibilities were reassigned, which he says were detriments contrary to s.47B ERA 1996.

8.4 On 27 January 2025 the respondent announced an 'operational restructuring' consolidating the HR and operations functions, without consulting the claimant. The claimant contends the redundancy was a sham and that the principal reason for his dismissal was that he had made protected disclosures, so that the dismissal was automatically unfair under s.103A ERA 1996.

8.5 The claimant, who is 58, further contends that the two consolidated roles were earmarked for materially younger colleagues and that his treatment amounted to direct age discrimination under s.13 Equality Act 2010.

8.6 The claimant raised a formal grievance on 6 February 2025, which was only partly upheld on 24 February 2025. The parties subsequently entered settlement discussions.

9 Remedy

The claimant seeks compensation (including uncapped compensation for automatic unfair dismissal and discrimination, and an injury-to-feelings award), a basic award and a declaration. Particulars of loss are set out in the attached schedule of loss.

Note: This ET1 was prepared protectively during settlement negotiations and was not presented, settlement having been concluded on 7 May 2025.